

Vishwanath vs Srichandrika Ravindranatha Sharma on 21 January, 2021

Author: T.Raja

Bench: T.Raja, G.Chandrasekharan

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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED 21.01.2021

CORAM

THE HONOURABLE MR.JUSTICE T.RAJA
and
THE HONOURABLE MR.JUSTICE G.CHANDRASEKHARAN

C.M.A. No.81 of 2021 and
C.M.P. No.593 of 2021

Vishwanath

... Appellant

-VS-

Srichandrika Ravindranatha Sharma

... Respondent

Prayer: Civil Miscellaneous Appeal filed under Section 19 of the Family Court Act to set aside the fair and decretal order dated 27.11.2019 made in I.A. No.2 of 2019 in O.P. No.704 of 2018 on the file of IV Additional Family Court at Chennai.

For Appellant : Mr.R.Saravanakumar

JUDGMENT

This appeal has been directed against the fair and decretal order dated 27.11.2019 passed by the IV Additional Family Court, Chennai allowing I.A. No.2 of 2019 in O.P. No.704 of 2018 and directing the appellant to pay a sum of Rs.25,000/- per month each to his wife and the minor child towards interim maintenance from the date of the petition, namely, 21.06.2019.

2.Aggrrieved thereby, the appellant has brought this appeal on the ground that the IV Additional Family Court, Chennai ought not to have mechanically entertained and allowed the Interim Application filed under Section 24 of the Hindu Marriage Act, without considering various vital aspects raised by the appellant.

3.Learned counsel for the appellant submitted that when the O.P. No.704 of 2018 was filed under Section 13(1)(ia)(ib) of the Hindu Marriage Act 1955 seeking decree for dissolution of marriage, the respondent wife has moved I.A. No.2 of 2019 under Section 24 of the Hindu Marriage Act seeking a direction against the appellant to pay a sum of Rs.1,15,000/- per month towards maintenance to her and her child on the premise that the appellant herein, who is employed in COWI at Gulf as an Accountant General, has been earning a sum of Rs.40,00,000/- per annum. When the appellant also has filed his salary slip for the period of October 2019 indicating that he has received Dirahim of 16159 per month, the Family Court, calculating one Dirahim is equivalent to Rs.19.43 of Indian Rupees, which in total Rs.3,13,969.37 as a monthly salary, erroneously directed the appellant to pay a sum of Rs.25,000/- per month each to the wife and the minor child. Learned counsel for the appellant further submitted that the appellant is no doubt employed in Dubai as Accountant General in COWI with the monthly salary of 16159 dirahim and the split up of his salary has been shown in the salary slip of October 2019 stating that the basic salary, house rent allowance, transport allowance, utility allowance and PF are 7548, 6667, 1694, 250, 3685 dirahim respectively and after deduction, the monthly salary comes to only 3863 dirahim. Since the appellant has been paying house rent allowance, transport allowance, utility allowance and in addition thereto he has been undertaking flight expenses from Dubai to Chennai for the sake of proceedings pending before this Court, he is virtually not taking sufficient money to comply with the order passed by the Family Court. Therefore, the impugned order passed by the Family Court to pay maintenance amount of Rs.25,000/- per month to his wife and child is disproportionate to the source of income of the appellant, hence the same is liable to be interfered with, he pleaded.

4.When this Court posed a question to the counsel appearing for the appellant as to the reasonable amount payable towards her interim T.RAJA, J.

and G.CHANDRASEKHARAN,J.

vga maintenance, he has not even agreed to pay any reasonable amount. Besides the above direction given by the IV Additional Principal Judge, Chennai to the appellant to pay a sum of Rs.25,000/- per month each to the wife and child is only an interim arrangement, hence, we are not inclined to entertain this Appeal. Accordingly, the appeal is dismissed. Consequently, C.M.P. No.593 of 2021 is closed. No costs.

(TRJ) (GCSJ)
21.01.2021

Index : Yes/No
vga

To

1.The IV Additional Family Court,
Chennai.

2.The Section Officer,
V.R.Section,
High Court, Madras.

